Amendment of the Constitution (Article 368)

Source: Constitution of India (public document, legislative.gov.in / India Code)

This document gives a short overview of Amendment of the Constitution (Article 368).

Article 368 in Part XX lays down the procedure for amending the Constitution. Some amendments need only a simple majority of Parliament, such as those for creating new states or altering boundaries. Most amendments require a special majority, meaning two thirds of members present and voting plus a majority of the total membership of each House.

Amendments affecting the federal structure need, in addition, ratification by the legislatures of at least half of the states. The President must give assent to a duly passed constitutional amendment bill. The Supreme Court in Kesavananda Bharati v State of Kerala (1973) held that Parliament cannot alter the basic structure of the Constitution.

The first amendment in 1951 added the Ninth Schedule and placed reasonable restrictions on free speech. The 73rd and 74th Amendments of 1992 gave constitutional status to Panchayati Raj institutions and urban local bodies.

Note: This is a simplified educational summary written in our own words from public information. It is not legal, financial or medical advice. Verify details with the official source before relying on them.